

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Index No.:

Plaintiffs,

600371/2021

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

-----X

330 Old Country Road
Mineola, New York

January 16, 2024
11:15 A.M.

EXAMINATION BEFORE TRIAL of STEPHEN GARGUILO, a
Nonparty witness herein, taken by Plaintiffs, pursuant
to Subpoena.

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1 A P P E A R A N C E S:

2
3 JOHN N. CUOMO LAW OFFICES

4 Attorneys for Plaintiffs

5 11 Fern Drive

6 Commack, NY 11725

7
8 BY: JOSEPH INDUSI, ESQ.

9 JOHN N. CUOMO, ESQ.

10
11
12 CYE E. ROSS, ESQ.

13 Attorney for Nonparty witness Stephen Garguilo

14 30 Vesey Street, Suite 1800

15 New York, NY 10007

S T I P U L A T I O N S

IT IS HEREBY STIPULATED AND AGREED by
and between the attorneys for the respective parties
herein, and in compliance with Rule 221 of the Uniform
Rules for the Trial Courts

THAT the parties recognize the provision of
Rule 3115 subdivisions (b), (c) and/or (d). All
objections made at a deposition shall be noted by the
officer before whom the deposition is taken, and the
answer shall be given and the deposition shall proceed
subject to the objections and to the right of a person
to apply for appropriate relief pursuant to Article 31
of the CPLR.

THAT every objection raised during a
deposition shall be stated succinctly and framed so as
not to suggest an answer to the deponent and, at the
request of the questioning attorney, shall include a
clear statement as to any defect in form or other basis
of error or irregularity. Except to the extent
permitted by CPLR Rule 3115 or by this rule, during the
course of the examination persons in attendance shall
not make statements or comments that interfere with the
questioning

THAT a deponent shall answer all questions at a
deposition, except (i) to preserve a privilege or right

1 of confidentiality, (ii) to enforce a limitation set
2 forth in an order of a court, or (iii) when the question
3 is plainly improper and would, if answered, cause
4 significant prejudice to any person. An attorney shall
5 not direct a deponent not to answer except as provided
6 in CPLR Rule 3115 or this subdivision. Any refusal to
7 answer or direction not to answer shall be accompanied
8 by a succinct and clear statement of the basis
9 therefore. If the deponent does not answer a question,
10 the examining party shall have the right to complete the
11 remainder of the deposition

12 THAT an attorney shall not interrupt the
13 deposition for the purpose of communicating with the
14 deponent unless all parties consent or the communication
15 is made for the purpose of determining whether the
16 question should not be answered on the grounds set forth
17 in section 221.2 of these rules and, in such event, the
18 reason for the communication shall be stated for the
19 record succinctly and clearly.

20 THAT failure to object to any question
21 or to move to strike any testimony at this examination
22 shall not be a bar or waiver to make such objection or
23 motion at the time of the trial of this action, and is
24 hereby reserved; and

25 THAT this examination may be signed and

1 sworn to by the witness examined herein before any
2 Notary Public, but failure to do so or to return the
3 original of the examination to the attorney on whose
4 behalf the examination is taken shall not be deemed a
5 waiver of the rights provided by Rules 3116 and 3117 of
6 the CPLR, and shall be controlled thereby, and

7 THAT certification and filing of the
8 original of this examination are waived; and

9 THAT the questioning attorney shall provide
10 counsel for the witness examined herein with a copy of
11 this examination at no charge.

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1 S T E P H E N G A R G U I L O, having been first duly
2 sworn by Rosemarie Tulumello(Ellis), a Notary Public of
3 the State of New York, was examined and testified as
4 follows:

5 EXAMINATION BY

6 MR. INDUSI:

7 Q Please state your name for the record.

8 A Stephen Garguilo.

9 Q What is your address?

10 A 12 Farmstead Road, Commack, New York
11 11725.

12 Q Mr. Garguilo, my name is Joe Indusi.

13 A Nice to meet you.

14 Q Good morning. I represent Tom and Diane
15 DeSousa in connection with the civil action
16 that's been filed against Richard Calvagno.
17 You're here as a nonparty. You're not a part
18 of or a party to that case.

19 A Right.

20 Q But I'm, nonetheless, going to ask you a
21 series of questions today in connection with
22 the subpoena, a nonparty subpoena --

23 A Got it.

24 Q -- for you to be here today. Do you
25 understand that?

1 A I do.

2 Q Very simple ground rules before we begin.

3 She can only take down one of us at a
4 time. If you let me finish my question, I
5 will do my best to let you answer the question
6 before I fire off another question so that she
7 can take down what I'm saying and what you're
8 saying and we're not talking over each other.

9 A Okay.

10 Q If you don't understand a particular question
11 or it's unclear on what you think I'm trying
12 to ask, just say, "hey, I don't understand.
13 Can you just repeat the question or clarify
14 the question," and I'm happy to do that. If
15 you need a break at any time, let me know.
16 We just need to answer the question that's out
17 and then we can take a break. Do you
18 understand?

19 A I do.

20 Q Are you taking any medications today that
21 would affect your ability to tell the truth?

22 A No.

23 Q Have you consumed any alcohol or drugs in the
24 last 24 hours that would affect your ability
25 to tell the truth?

1 A No.

2 Q Who are you employed by?

3 A Westbury Jeep.

4 Q How long have you been employed there?

5 A Since 2020, January of 2020, so this is my
6 fourth year. '20, '21, '22 '23 -- entering
7 into the fifth year, I guess, just starting.

8 Q So you started working in 2020 there?

9 A January 1, 2020, right before COVID, yes.

10 Q And where did you work before?

11 A Immediately before that Atlantic Toyota.

12 Q What was your job title there?

13 A Service director.

14 Q And what is your job title at Westbury Jeep?

15 A Service director.

16 Q What is involved in being a service director?

17 A I don't know how to answer that. A lot.
18 I would say my most basic responsibility is to
19 my staff as service director, but overall as a
20 service facility we provide repair and
21 maintenance services to our customers on their
22 vehicles.

23 Q And as the service director, are you in charge
24 of the service department; is that a fair way
25 of categorizing your job?

1 A Sure.

2 Q So you have to direct the service team that
3 deals directly with the customers as well as
4 the service techs that deal directly with the
5 cars --

6 A Correct.

7 Q -- is that correct?

8 A Correct.

9 Q So there's really two facets of the service
10 team; you have the people that are actually
11 hands on with the cars, the mechanics, the
12 inspectors and then the people that deal
13 directly with the customers; is that correct?

14 A Yes.

15 Q And you manage both groups, correct?

16 A Yes.

17 Q Do you know who Richard Calvagno is?

18 A Yes.

19 Q How do you know who he is?

20 A He's both a customer and an employee to a
21 company that we deal with.

22 Q Is that company AAAA-1 Towing?

23 A Yes.

24 Q And what does AAAA-1 Towing do for Westbury
25 Jeep?

1 A They provide towing services for our
2 customers.

3 Q And do they also provide body shop work for
4 your customers?

5 A I believe that's a separate company or
6 entity, but yes.

7 Q Okay.

8 Same ownership?

9 A Related business, yeah.

10 Q What's your involvement with Richard Calvagno
11 in connection with that business arrangement?

12 A So currently there's not much involvement,
13 so more so my staff would be involved.

14 Previously, maybe my first year or two, I
15 probably reached out to make the phone call in
16 order to get a car picked up or whatever the
17 case may be. There's interaction.

18 Q Okay.

19 Would it be fair to categorize your
20 interaction with Rich Calvagno from when you
21 first dealt with him till present as
22 professional?

23 A Correct.

24 Q Do you have any nonprofessional relationship
25 with him, friends, anything like that?

1 A No.

2 Q Now I'd like to ask you some questions about a
3 letter.

4 MR. INDUSI: We can mark this. So I
5 think we are up to 4.

6 Q There's some other stuff that I went through
7 with the other guys but I'm just going to
8 start with this.

9 A Okay.

10 (Whereupon, letter was marked as
11 Plaintiffs' Exhibit 4 for
12 identification, as of this date.)

13 Q Mr. Garguilo, why don't you take a look at
14 that letter? Do you recognize this letter?

15 A I'm familiar with it.

16 Q Is that your signature on the letter?

17 A Yes, it appears to be.

18 Q Did you write this letter?

19 A That I don't know for sure. At the time
20 I may have had another assistant or someone
21 that actually prepared it, but do I recall the
22 situation and signing a letter for this
23 purpose, yes.

24 Q So let's go back to that.

25 How did you come to generate the letter

1 with your signature for Mr. Calvagno; how did
2 that happen?

3 A From what I can remember, I don't know if
4 he was in contact with me directly or through
5 my staff, I just recall him requesting a
6 letter that detailed that his car was
7 unmodified from an exhaust perspective, I
8 believe, or just unmodified potentially.
9 Again, I don't remember the particulars, if he
10 had contacted me directly or got in contact
11 with me directly to initiate this or if it was
12 through the team.

13 Q Okay.

14 Just to clarify, sitting here today, you
15 don't have a recollection of whether you spoke
16 to Mr. Calvagno back in or around August of
17 2021, the date the letter is dated; is that
18 correct?

19 A The date that it's dated, I believe I had
20 spoken to him directly at that point, right.
21 The initiation of the letter, I don't know how
22 we originated, but yes.

23 Q Do you remember, sitting here today, if this
24 letter was drafted the way it's written here
25 now or whether there was changes to a prior

1 draft?

2 A That I don't know.

3 Q And sitting here today, just to clarify, you
4 don't remember whether you actually typed this
5 letter or somebody else typed it for you?

6 A Correct, I'm not sure.

7 Q But I'm sure you would agree that before you
8 signed it you did read it and believed it to
9 be true; is that correct?

10 A Correct.

11 Q Now, I just want to go line by line with you,
12 if we could. There's only five sentences so
13 it should be quick.

14 The first sentence, the make, model and
15 year of the car, that's in reference; is that
16 correct?

17 A Yes.

18 Q Second sentence identifies that the car comes
19 with performance parts, but is street legal,
20 quote, "from the manufacturer." Is that in
21 sum and substance what you're trying to convey
22 by that sentence?

23 A Correct, yes.

24 Q The vehicle has recently been inspected by our
25 facility and passed the New York State vehicle

1 inspection on June 17th of 2021. Did you look
2 that up somehow before you wrote this letter?

3 A So that I don't know. In review now,
4 looking at it, it doesn't make sense.

5 Q There is no record of any inspection on June
6 17, 2021?

7 A So looking back, I'm uncertain of what
8 that is.

9 Q The next sentence, "the vehicle is not
10 modified from its factory equipment."

11 Now, I want to ask you a few questions.
12 This letter is dated August 6, 2021; is that
13 correct?

14 A Yes.

15 Q Mr. Calvagno acquired this car in April of
16 2019, to your knowledge; is that correct?

17 A I don't have that information in front of
18 me, but I will take your word for it.

19 Q I don't want you to take my word for it. He
20 didn't buy the car in 2021; is that correct?

21 A He had the car for some time, correct.

22 Q When you say it's "not modified from its
23 factory equipment," do you mean to say that
24 based on the fact you understood it to be
25 inspected only two months earlier, that you

1 didn't believe it was modified or did you
2 actually inspect this car yourself to know
3 that it wasn't modified?

4 A I made no inspection of the vehicle. I
5 rely on my staff.

6 Q Somebody told you, in other words, and you can
7 correct me if I'm wrong, somebody told you
8 this car was recently inspected two months
9 ago?

10 A Right.

11 Q You assumed from that inspection, this thing
12 wasn't modified and that's why you put your
13 signature on this?

14 A Right. From my recollection, as a
15 courtesy to him, because of his interest in
16 receiving this letter, we required him to
17 bring the vehicle in to inspect it
18 specifically for this purpose. I don't
19 recall who inspected it. Unfortunately,
20 there's no invoice or anything within that
21 timeframe to make sense out of that for me as
22 well, so I don't know who inspected it. I
23 just know that there was an interaction
24 between myself and someone on my team in order
25 to come to that conclusion.

1 Q I just want -- I'm not trying to ask it any
2 other way, but there's nothing in this letter
3 that says you performed or somebody on your
4 team performed anything other than a New York
5 State inspection on June 17, 2021; is that
6 correct?

7 MR. ROSS: The letter speaks for
8 itself.

9 MR. INDUSI: Well, I'm asking him a
10 question. He's the author of the letter.

11 Q Is there anything in here that indicates that
12 any other inspection, other than a New York
13 State inspection, was done before this letter
14 was written?

15 A Well, yes. So the statement that's
16 there, probably poorly written, could be taken
17 as a run-on statement meaning that we
18 inspected it in our facility and it had also
19 passed an annual New York State inspection.

20 Q Okay. Understood.

21 Sitting here today, though, you have no
22 recollection of who performed that inspection,
23 correct?

24 A Correct.

25 Q You have no record independent of this letter

1 that any such inspection was ever performed,
2 correct?

3 A Correct.

4 Q And sitting here today, you have no recollection
5 as to the scope of that inspection, correct,
6 as to what was specifically inspected on the
7 vehicle?

8 A As it relates to this?

9 Q Yeah.

10 A Yeah.

11 Q That's a no?

12 A No.

13 Q I think I asked you you didn't personally
14 inspect the vehicle on June 17, 2021?

15 A Correct.

16 Q So are you a licensed New York State inspector
17 yourself?

18 A I am not.

19 Q So that skips this. That skips this. That
20 skips this. We don't need that.

21 I do want to ask you some questions about
22 this, which is Plaintiffs' 3. Those are some
23 service records which, hopefully, you can help
24 me answer some questions on.

25 So the first page, if we take a flip to

1 the second page, there's a work order here --
2 a repair order I will call it, I think that's
3 the right lingo, that's dated 902003; is that
4 correct?

5 A Yes.

6 Q It says "RO opened April 26, 2019." What
7 does that date mean on a repair order?

8 A Specific to this repair order or --

9 Q Yes.

10 A -- just in general?

11 Specific to this, it's just the date in
12 which, it looks like this gentleman, Nicholas
13 Giglio, or whomever the employee was,
14 originated the repair order, the work order.

15 Q Now, I'm just going to ask you about this
16 particular repair order in a general sense.
17 This to me looks like a repair order that was
18 generated in connection with the purchase of a
19 new vehicle.

20 A Correct.

21 Q If you could just clarify that; is that what
22 this is?

23 A Yes.

24 Q And the RO open date and ready date, the gap
25 there of about a month, is probably because

1 the car wasn't on the lot and maybe took some
2 time to get it prepped and ready?

3 A I wouldn't speculate on that. It more
4 than likely it's just human nature. The
5 gentleman didn't do his job and close it out
6 right away. Somewhere in between those two
7 dates, I would imagine the car was sold to
8 Calvagno. I could see the delivery date was
9 on the open date so they didn't go back in and
10 close it out.

11 Q So when you see that and you see a delivery
12 date, it would be fair then to assume that the
13 open date, that same day, would it fair to say
14 that the line items were all done on that same
15 day as well?

16 A Correct.

17 Q So, for instance, they cleaned the car, they
18 filled it with gas that was, most likely,
19 based on a review of this record, done on
20 April 26th of 2019?

21 A Yes.

22 Q And the same thing with the safety inspection,
23 which is also line item number C, which has
24 probably been done on that day before the car
25 was delivered?

1 A Correct.

2 Q Great. So that's that.

3 So just flip again two pages to 951386.
4 This looks like a repair order for a safety
5 inspection that was performed on May 8th of
6 2020. Is that how you would read it as well?

7 A Correct, yes.

8 Q And just so I can understand, is there any
9 indication here whether it's a pass or a fail?

10 A There is not on this.

11 Q Okay.

12 And is there any record, that you're aware
13 of, that could tell us whether this was a pass
14 or a fail?

15 A From 2020, no, not to my knowledge.

16 Q And is that because you can only go back one
17 year on the New York VIP machine based on
18 plate and VIN to pull that inspection report?

19 A Correct.

20 Q And that's an inspection report that looks
21 like what's been marked as Plaintiffs' 2 that
22 I'm showing you?

23 A Correct.

24 Q Okay.

25 Just the form. It's redacted. It's not

1 in connection with this case, but this is the
2 form of report that would be generated after a
3 pass or a fail?

4 A Yes.

5 Q And the dealership didn't keep copies of these
6 on file?

7 A No.

8 Q A copy goes to the customer and then it sits
9 in New York State cloud for one year and then
10 it's purged?

11 A Yes.

12 Q So no way to tell who did the safety
13 inspection from this record?

14 A I don't know how to answer that. No way
15 for certain.

16 Q Okay.

17 A We don't have the --

18 Q This requires -- I'm sorry to cut you off.

19 This requires a credential by the
20 inspector to log in and make the report?

21 A Correct.

22 Q This is generated by a service advisor who
23 could put any name, in theory, in there --

24 A Correct.

25 Q -- without any real check as to who did it?

1 A Yes.

2 Q Okay. All right.

3 So we could just flip now, I think it's
4 probably easier to go to the back and go one,
5 two, three pages in from the back.

6 A What number is that?

7 Q That's 182040.

8 A Okay.

9 Q And this looks like a full New York State
10 inspection was completed, meaning safety and
11 emissions, on May 25th of 2023 by Bill
12 Wurster; is that what this record reflects?

13 A Yes.

14 Q And, again, correct me if I'm wrong, there's
15 nothing on this document that indicates
16 whether this is a pass or a fail?

17 A Correct.

18 Q And now if we flip back, it's four or five
19 pages, the top number is 140337 and that is
20 another repair order that indicates a full New
21 York State inspection safety and emissions was
22 performed on May 3rd of 2022; is that correct?

23 A Yes.

24 Q And there's no indication again whether it's a
25 pass or a fail?

1 A Correct.

2 Q Now, I think you kind of alluded to it before
3 in between -- sorry, withdrawn.

4 Car leaves the dealership. Safety
5 inspection is done before it leaves, correct,
6 when a new car is purchased?

7 A Yes.

8 Q A year later, another safety inspection is
9 performed. You don't need to do an emissions
10 inspection that first year; is that correct?

11 A Depending on the year of the vehicle, yes.

12 Q Assume a new car in this scenario based on
13 this car.

14 A Correct.

15 Q We're missing this report here. I think you
16 would agree the 2021 inspection. We have the
17 initial safety inspection in 2019. We have
18 the subsequent 2020 inspection, which we just
19 went through, that's the one with the missing
20 inspector, and then we have nothing in 2021
21 and then we have the 2022 and the 2023
22 inspection. Is that an accurate
23 categorization of these repair order records?

24 A Bear with me. Sorry.

25 Q Yep. Take your time.

1 A (Perusing)

2 Correct.

3 Q And it's likely -- I'm sorry, withdrawn.

4 The invoicing for the inspection, is that
5 something that's entered by the service
6 advisor or is that something that's entered by
7 the mechanic?

8 A Service advisor.

9 Q And there's -- sorry.

10 The initial safety inspection was no
11 charge for Mr. Calvagno; is that correct?

12 A Yes.

13 Q And the second annual safety inspection was
14 also no charge for Mr. Calvagno, correct?

15 A Yes.

16 Q And the 2022 full inspection was also no
17 charge for Mr. Calvagno and the 2023
18 inspection was also no charge for Mr.
19 Calvagno?

20 A Yes.

21 Q But yet there was still a repair order created
22 in the system?

23 A Internally so if they purchased the
24 vehicle from us, we give free inspections for
25 life.

1 Q Oh, wow.

2 A All customers.

3 Q But, again, there was no inspection entered
4 into your system for the 2021 inspection?

5 A Correct.

6 Q And sitting here today, you don't know whether
7 there was ever an inspection done at Westbury
8 in 2021?

9 A Correct.

10 Q Could have been done somewhere else; you don't
11 have a record of it?

12 A Yeah.

13 Q Okay.

14 MR. INDUSI: I don't think I have
15 anything else.

16 (Whereupon, at 11:37 A.M. the
17 Examination of Stephen Garguilo was
18 concluded.)
19

20 _____
STEPHEN GARGUILO

21

22 Subscribed and sworn to before me
23 this ____ day of _____, 2024.
24

25 _____
Notary Public

I N D E X

WITNESS	EXAMINATION BY	PAGE
Stephen Garguilo	Mr. Indusi	6

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E X H I B I T S

PLAINTIFFS'	DESCRIPTION	PAGE
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C E R T I F I C A T E

I HEREBY CERTIFY that the Witness was duly
sworn by me, the officer before whom this
Examination Before Trial was taken, and that
the minutes herein are a true and accurate
transcription of the proceedings hereunder.

Rosemarie Tulumello Ellis
ROSEMARIE TULUMELLO (ELLIS)

**** ERRATA SHEET ****

CASE: DIANE C. DESOUSA, et al. vs.

RICHARD A. CALVAGNO II, et al.

DEPOSITION DATE: 1/16/2024

DEPONENT: STEPHEN GARGUILO

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STEPHEN GARGUILO

SUBSCRIBED AND SWORN TO BEFORE ME

THIS _____ DAY OF _____, 20____.

(NOTARY PUBLIC)

MY COMMISSION EXPIRES:

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New York Code
Civil Practice Law and Rules
Article 31 Disclosure, Section 3116

(a) Signing. The deposition shall be submitted to the witness for examination and shall be read to or by him or her, and any changes in form or substance which the witness desires to make shall be entered at the end of the deposition with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness before any officer authorized to administer an oath. If the witness fails to sign and return the deposition within sixty days, it may be used as fully as though signed. No changes to the transcript may be made by the witness more than sixty days after submission to the witness for examination.

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